



Benton County Circuit Clerk & Recorder

Circuit Clerk - Brenda DeShields

Filing Fees

Court Fees / Recorder's Fees / Passport Fees

The Office of the Circuit Clerk accepts the following forms of payment: cash, personal checks, business checks, cashier's checks, postal money orders, and non-postal money orders.

Court Filing	Fees
Initiating a cause of action in the Circuit Court: (Civil, domestic, out-of-state judgments, and all appeal(s) Ark Code Ann. §21-6-403(b)(1)	\$165.00
Reopening a cause of action in the Circuit Court Ark Code Ann. §21-6-403(b)(2)	\$50.00
Out-of-state subpoena	\$2.50
Any cause of action which by court order is transferred from any district or circuit to a circuit court	\$50.00
Initiating a criminal cause of action being appealed to the Circuit Court Ark Code Ann. §21-6-403(b)(1)	\$150.00
Scire Facias: a Writ for a dormant judgment against a person to be revived	\$20.00
Writs of Garnishment, Writs of Execution, and Writs of Possession	\$20.00
Circuit Clerk issuing subpoenas for civil and domestic cases (When counsel requests for the clerk to prepare)	\$2.50
Circuit Clerk issuing summons for civil and domestic cases	\$2.50
Filing a pleading by fax	\$1.00 (per page)
Copy of a pleading or any document	\$0.25 (per page)
Certification of a Court Document	\$5.00
Authentication of a Court document or Court record	\$5.00
Filing an appointment to serve as a Civil Process Server	*\$140.00
Renewal of a Civil Process Server	*\$50.00
Once approved by the Court, a Process Server Badge Fee will apply of	\$5.00

Recorder's Fees

Recorder's Filings	Fees
Deeds, Deeds of Trust, Mortgages, Release Deeds, Powers Of Attorney, Plats, Survey Plats, Notary Bonds, Foreign Judgments (within the State of Arkansas), Lis-Pendens, Medical Liens, Mechanic's and Materialman's Liens, Federal Tax Liens, and any Recordable instruments except as otherwise described in this section Ark. Code Ann. §21-6-306.	\$15.00 Plus \$5.00 for every page subsequent to the first Note: a two-sided instrument counts as two pages
Mortgage Assignments, Mortgage Releases, and other instruments Ark Code Ann. §21-6-306	If a single document lists multiple instruments: No fee for the first instrument. Thereafter, a fee of \$15.00 per additional instrument listed, not to exceed \$300.00
Mortgage's or Trustee's Notice of Default and Intention to Sell (Ark Code Ann. §18-50-104) Ark Fee Code §21-6-306	\$140.00 Plus recording fee of \$15.00 for the first page (1) side only and \$5.00 for each additional page
Waiver of Recordable Instrument requirements of Ark. Code Ann. §14-15-402(b)(1) for good cause (at Recorder's discretion) Ark. Code Ann. §21-6-306.	\$25.00
State Tax Liens	\$8.00
Financing Statement/UCC Filings, Pursuant to Act 942 of 2009, the filing of all agricultural liens and farm-related security interests will be made in the Arkansas Secretary of State's Office	
UCC Filings - Fixture Filings	\$12.00
Termination Statement Certification	\$6.00
Certificate of Assessment of any other instrument not specified	\$8.00
Certified copy of a Recorded document	\$5.00 for the first page \$0.25 per subsequent page
Copy of a document	\$0.25 (per page)
Certificate of Proof of Notary	\$5.00
Copies of full-size plats	\$3.00 (per page)
DD2-14 forms	No Charge
Bond in Contest	\$15.00 Plus \$5.00 for each additional page

Recorded Instrument Requirements

Recordable Instrument Requirements:

1. Original instrument
2. Notarized signature
3. Tax statement return address on document
4. Name of instrument preparer
5. Revenue stamps on warranty deeds (if revenue changed hands)
6. "I Certify" statement on all warranty deeds (and any deed that has revenue stamps affixed)
7. A self-addressed stamped envelope (if sending in by mail)
8. Compliance with Standardized Form Act 757 of 2003 (Or refer to Ark. Code Ann. § 14-15-402)

Surveys and Plats Requirements:

1. Original instrument
2. All Required signatures on each instrument-including City Planning, if applicable.
3. Accompanied with a reduced copy, if larger than 18" by 24".
4. Plat Affidavit of Compliance - For copy of form go to LAND RECORDS also in ONLINE FORMS.
5. Color plats accepted ONLY if accompanied with a black and white copy.

Passport Fees

Fees described below apply to each applicant.

Please Note: Passports issued to those 16 years and older are valid for ten years. Passports for children under 16 years are valid for five years and are not renewable. If you are behind in child support payments, you may not be able to obtain a passport. See [Child Support](#). For assistance with special circumstances, visit the Recorder's Office or call 479-271-1017. Additional information may be found at the [U.S. Department of State website](#).

Passport renewal applications may be completed if the applicant has previously had a U.S. Passport book/card issued within the past 15 years and issued when the applicant was 16 years or older. The undamaged U.S. Passport book/card should be submitted along with the DS-82 form and mailed to the U.S. Department of State by the applicant.

Please arrive no later than 3:40 p.m. at the Recorder's Office to process a passport application

Passport Application Requirements:

1. One (1) 2" by 2" Passport Photo
2. U.S. Birth Certificate (original or certified copy) or naturalization papers
3. Passport Application completed in black ink or typewritten
4. Driver's license or a state-issued ID card
5. For children ages birth to 15 years:
 - + Both parents must sign the application in front of the accepting agent
 - + Child(ren) must be present at time of application
6. For Children ages 16 and 17:
 - + One parent must sign the application in front of the accepting agent
 - + Child(ren) must sign the application in front of the accepting agent

ADULT APPLICANTS (Age 16 Years or Older)	Fee
Adult Passport Book	\$130.00
Adult Passport Card (Not valid for international air travel. Valid only for travel by land and by sea to Canada, Mexico, Bermuda, and the Caribbean.)	\$30.00
Adult Passport Book & Card	\$160.00
ALL MINOR APPLICANTS (Under the Age of 16)	Fee
Minor Passport Book	\$100.00
Minor Passport Card (Not valid for international air travel. Valid only for travel by land and by sea to Canada, Mexico, Bermuda, and the Caribbean.)	\$15.00
Minor Passport Book & Card	\$115.00
Additional Fees	Fee
Execution Fee per applicant Adult & Minor (payable to Benton County Circuit Clerk's Office)	\$35.00
Passport Photos	\$10.00
Priority Mail Express - Overnight up to 2-Day Guarantee (US Mail Service not guaranteed by the Circuit Clerk's Office). Payable to the United States Postal Service. *USPS rates may change*	\$35.90
1-3 Day Return Services US Postal Priority Mail Overnight up to 3-Day Guarantee service. (USPS Express Mail® Service)	\$23.36
Expedite Fee (payable to the U.S. Department of State)	\$60.00

Return Deliver: 1-3 day delivery service you will include the delivery fee with your passport fee in your check or money order payable to the US Department of State for faster return shipping. You may receive your passport and your supporting documents submitted with your application in separate mailings. (The Circuit Clerk does not offer a guarantee for US Postal Services)

Contact

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